

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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KHALILAH SUTHERLAND and MOSES JIMENEZ,

SUMMONS

Plaintiff,

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
DAVID DELVILLAR (Shield # 6104) and NYPD
OFFICERS JOHN and JANE DOE #'s 1-8 (names
and numbers are unknown at present) and Other
Unidentified members of the New York City Police
Department,

Plaintiff Designates
Kings County
as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 24, 2021

Respectfully submitted,

/s/

Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER DAVID DELVILLAR (Shield # 6104), 61st Precinct, Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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KHALILAH SUTHERLAND and MOSES JIMENEZ,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
DAVID DELVILLAR (Shield # 6104) and NYPD
OFFICERS JOHN and JANE DOE #'s 1-8 (names
and numbers are unknown at present) and Other
Unidentified members of the New York City Police
Department,

Defendants.

-----X

Plaintiff **Khalilah Sutherland and Moses Jimenez**, by their attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected them to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, conspiracy, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Khalilah Sutherland and Moses Jimenez are residents of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

4. NYPD DETECTIVE DAVID DELVILLAR, assigned Shield # 6104, employed with at the 61st Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER DAVID DELVILLAR (Shield # 6104) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

12. On January 1, 2020, at approximately 5:00 p.m. at 3430 Avenue X, Brooklyn, New York, several police officers from the 61st Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer David Delvillar, P.O. John and Jane Does #1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiffs Khalilah and Jimenez
13. On the above-mentioned date, Plaintiffs were in a bedroom in the apartment when, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that

plaintiffs (or any third person) had committed a crime, the defendants unlawfully entered the apartment by breaking through the door and drew their firearms at plaintiffs.

14. The defendants purported to have a search warrant for the apartment, however no such search warrant was provided to plaintiff s even though Plaintiffs made several requests to view the alleged warrant. Defendant officers did show Plaintiffs a picture of the individual they were searching for, named Jesus Torres, who was the owner and primary resident of the apartment.
15. Once the defendant officers entered the apartment, plaintiffs were not free to disregard their questions, or walk away, or leave the scene.
16. While inside the apartment, defendants, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that the plaintiffs (or any third person) had committed a crime, falsely arrest the plaintiffs.
17. Upon information and belief, plaintiffs were not the subjects of any search warrant.
18. Plaintiffs provided objective and reliable information to the defendant officers prior to their arrest that they had no control over any contraband or illegal activities in the apartment. Defendant officers disregarded this information and placed Plaintiffs under arrest.
19. Plaintiffs were transported to the 61st precinct and then transferred to New York Central Booking.
20. While plaintiffs were incarcerated at the 61st precinct, Plaintiff Sutherland provided compelling and objective documentation indicating she did not reside in the apartment, as evidenced by the alternative address referenced in the Desk Appearance Ticket (“DAT”) she received from the precinct. Upon information and belief, plaintiff Jimenez provided similar information, indicating he had no dominion or control over the apartment. Despite this information, defendant officers transferred Plaintiff Jimenez to Central Booking and issued Plaintiff Sutherland a DAT. Defendant officers then falsely and maliciously told the New York County District Attorney’s Office that plaintiffs had committed the crime of Criminal Possession of a Firearm. Later, this charge was dropped, and plaintiffs were instead charged with Torture or Injury to an Animal in violation of Agriculture and Markets Law section 353. The animal in question belonged to Jesus and Angelina Torres, who lived full-time in the apartment and were the owners of the dog. Plaintiffs never abused or neglected the animal. Upon information and belief, defendant officers were made aware of this prior to the plaintiffs’ arrest.
21. During their time in custody, Plaintiff Sutherland was handcuffed to a chair in the 61st precinct for more than 3 hours. Plaintiff Jimenez was handcuffed unnecessarily tightly for 3 hours prior to arriving at the precinct. He repeatedly requested defendant officers to loosen the handcuffs, but his requests were ignored. He suffered pain and bruising to his wrists lasting 3 days.
22. Based on the defendant’s false statements, the New York County District Attorney’s office chose to prosecute Plaintiff Sutherland under docket CR-001407-20KN and Plaintiff Jimenez under CR-000108-20KN.

23. Plaintiff Sutherland was incarcerated for approximately 17 hours. Plaintiff Jimenez was incarcerated for approximately 31 hours. During their confinement, plaintiffs were subject to depraved, filthy and inhumane conditions.
24. Plaintiffs were released on their own recognizance at arraignment.
25. On January 30, 2020, the above-stated malicious prosecution terminated in Plaintiff Sutherland's favor when the case against her was dismissed and sealed in its entirety. Plaintiff Jimenez's case was also dismissed in sealed in its entirety.
26. Prior to dismissal, Plaintiff Sutherland attended 2 court appearances. Plaintiff Jimenez attended approximately 4 court appearances.
27. Plaintiffs Sutherland was suspended from her job as a paraprofessional with the Department of Education. She was never able to return to work. Plaintiff suffered injuries to his wrists while in custody because the handcuffs were too tight. Both Plaintiffs suffered severe emotional injury, including anxiety and sleeplessness, as a result of their arrest.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

28. Plaintiff repeats and alleges paragraphs 1 through 27 as if fully set forth herein.
29. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
30. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
31. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.
33. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.

34. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
35. Defendants commenced and continued a criminal proceeding against plaintiff.
36. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
37. The prosecution and criminal proceedings terminated favorably to plaintiffs on January 30, 2020 and at a later date.
38. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
39. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION

FAILURE TO INTERVENE

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
44. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
45. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.

- 46. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
- 47. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

- 48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
- 49. Defendants owed a duty of care to plaintiff.
- 50. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
- 51. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
- 52. All of the foregoing occurred without any fault by plaintiff.
- 53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

- 54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
- 55. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
- 56. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
- 57. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

58. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.
59. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's request to loosen his handcuffs. This failure to loosen his restraints over a long time-period inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
60. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
61. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH, NINTH, TENTH, ELEVENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (8th claim); false-arrest/cruel and unusual punishment/unlawful-search claims (9th claim); malicious-prosecution claim (10th claim) and deprivation-of-fair-trial claim (11th claim).

62. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.
63. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
64. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
65. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.
66. In particular, Plaintiffs allege that Defendants' retaliatory and harassing false arrest, use of cruel and unusual punishment, unlawful search, malicious prosecution and fabrication of evidence violated their First, Fourth, Fifth, and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.

67. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
68. In the event Plaintiff prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TWELFTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.
70. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
71. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
72. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
73. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
74. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
75. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.

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ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
March 25, 2021

_____/s/
Sydney O'Hagan, Esq.